

23STCV12148 23STCV12148

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-24

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Case Number: 23STCV12148 Hearing Date: September 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV12148

KAMRAN

BENJAMIN vs JACK MELKI, et al.

September

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF KAPLAN KENEGOS & KADIN TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The Court grants the
Motion.

The Court requests moving
counsel to submit another proposed Form Order within five days, correcting the checkboxes
that appear as the letter "D" on the filing received-stamped on August 18,
2026.

Kaplan Kenegos &
Kadin to give notice.

ANALYSIS:

By the Motion, filed August
18, 2026, counsel moves to be relieved as attorney of record for Plaintiff/Cross-Defendant
KAMRAN BENJAMIN, by declaring, in the form Declaration, at paragraph 2, that
there has been an attorney-client-relationship breakdown, and attorneys' fees
payments are overdue.

Here, the form notice,
declaration, proposed order, and proofs of service sufficiently comply with the
requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's
declaration shows cognizable grounds for withdrawal:

A breakdown in the attorney-client
relationship (or personality clash). (Estate of Falco v. Decker (1987)
188 Cal.App.3d 1004, 1014.)

The client breaches an agreement or
obligation to the member as to expenses or fees. (Rules Prof. Conduct,
rule 1.16; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161,
1173.)

Although the case was
stayed on April 24, 2026, after a Notice of Bankruptcy Stay filed April 23,
2026, attorney withdrawal carries no economic impact on a bankruptcy estate. The
scope of a bankruptcy stay does not include an act or proceeding where property
of the debtor's estate would be unaffected. (Grant v. Clampitt (1997) 56 Cal.App.4th 586, 590-591.) "When a stay

is vacated, is no longer in effect, or is modified, the party who filed the notice of the stay must immediately serve and file a notice of termination or modification of stay. If that party fails to do so, any other party in the action who has knowledge of the termination or modification of the stay must serve and file a notice of termination or modification of stay.” (Cal. Rules of Court, rule 3.650(d).)

Finally, no opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.)

Therefore, the Court grants the Motion and will sign the proposed Order counsel submitted.